EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

Why Read the Get Before Giving It?

Even HaEzer, Gittin 135

Sefer: Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 135, Seifim 1-5 (the whole siman)
Shiur: A Dayanut shiur by Dayan Daniel Kada, Wednesday 29 June 2022

These notes are based on an automatic transcript of the recording.

Introduction: The Siman of Reading the Get

The whole of Siman 135 comes from one daf of Gemara, **Gittin 19b**. Seifim 1, 2 and 3 form one sugya; then come Seif 4 and Seif 5.

Seifim 1-3 are "the most practical part of the siman. It's very, very relevant, and sometimes dayanim can forget to do it when you've had a long get": the law of **reading the get before and after it is given**.

Part 1: The Sugya in Gittin

The Gemara says that **the two edim who witness the get must read it** (*kore'in et ha-get*). The Gemara then asks from a Beraita:

A man gave his wife a get; she received it and threw it into the sea or the fire; and then the husband said, "It wasn't a get." He has no power to forbid her. Once he gave it before edim and she received it, he can no longer claim it was not a get.

The Gemara asks: if the get must always be read before the two edim, how could the husband even claim it was not a get?

The answer: of course they read it. The case is where, **after the edim read it, the husband took it back** and had it for a few moments. Perhaps he moved things around in his pockets and could have swapped it for another document. One might think that because of those moments, perhaps he swapped it. The Beraita teaches that we are not concerned: since he gave it before the two edim, she is divorced.

What if it was not read at all?

The Rabbi asked the class: from this Gemara, what is the status of a get that was **not read at all**, before or after?

The **Tosafot** make a simple *diyuk* (inference). If reading the get were not essential (*me'akev*), why does the Gemara need the answer that he took it back and maybe swapped it? It could simply have answered: in that case they did not read it. So **if the get was not read, it is invalid**, or more precisely, she is a ***safek megureshet*** (doubtfully divorced).

A question from Yevamot

Tosafot then raise a contradiction from a Gemara in Yevamot (which will come up again in Siman 152). After writing a get, they would prepare a ***shovar***, a receipt, like the get certificate given today. The get goes to the wife (through the husband), and the receipt to the husband. In that case, the sofer mixed them up, so that the husband ended up handing his wife the **receipt instead of the get**. Obviously no get was given, and the Gemara says ***tetze*** (she must leave a second husband). The Gemara asks: it was not her fault, both wanted the get given! It answers that it **is her fault, because she should have read it in advance**.

Tosafot's question: there they did not read the get at all, and still the Gemara explains *tetze* by the swap of the receipt for the get. If not reading is itself essential, why mention the swap?

Tosafot's two answers

	Not reading the get	Yevamot
First answer	A middle ground: ***lechatchila lo tinasei, ve-im nis'et lo tetze*** (lechatchila she should not remarry; if she did, she need not leave)	*Tetze* because she was handed a receipt, not a get. That is why our Gemara could not simply answer "they did not read it," since that would not explain the Beraita's ruling that she is fully divorced
Second answer	***Me'akev***: she is a *safek megureshet*, so ***tetze***	They **did** read it. But afterwards the husband had moments alone with it, as in our Gemara, and she ended up with only the receipt. It is her fault for not checking again

A student asked whether "it's her fault" in Yevamot implies a rabbinic penalty (*knas*), rather than a true doubt *min haTorah*. The Rabbi explained that we do not know what happened there: we only know she ended up with the receipt. Perhaps she never received the get at all, so she is not divorced; and even if she did, it is a penalty, since she should have checked. In our case, at least according to Tosafot's second answer, an unread get is essential: it is at least a *safek* get, so *tetze*.

The Rambam and the Ran

The **Rambam** and the **Ran** take the Gemara here very simply: the get must be read, and if it was not, **you don't know it's a get**, so she is a *safek megureshet*. The Rambam does not address the Gemara in Yevamot; perhaps he learned like Tosafot's second answer. Either way, the Rambam clearly holds an unread get leaves her *safek megureshet*. "So therefore it's very clear that it's critical to read the get, the edim to read the get."

Part 2: Who Reads, and When (Seif 1)

Who reads

The Gemara clearly says **the edim** read the get. The **Rema** records that it is the **minhag** for the **dayanim together with the edim** to read it, and that is what happens nowadays. But the essential point is that the **edim** read it.

In Perth, a student said, everyone reads it together, before and after.

Read only after the giving

What if they did not read it before he gave it, and only read it afterwards? "This can happen. It's happened with us actually," in a rushed get: they gave the get and then remembered that it needed reading.

- **Tosafot** say it is obvious that she is divorced, and **all the Rishonim**, the Rosh and the Rambam among them, agree: she is divorced, with no issue at all.
- **The Mordechai**, in the name of the **Maharam**, says she is **not divorced *min haTorah***. Why? Because it is lacking in the **testimony** of the edim. When they witnessed the giving, they did not know there was a get. It was a document; it could be anything. So reading it afterwards does not help.
- **The Shulchan Aruch** rules like all the Rishonim: she is divorced and may remarry lechatchila.

A student found the Maharam's logic strange: surely the edim assume it is a get. The Rabbi pressed: how do you know? Perhaps they were just summoned to watch "what I'm giving this woman." They are *edei mesira*, so they must know what they are witnessing. There must at least be some statement or context of a get (this is discussed in the next siman, 136). The student's point: the Maharam seems to require that until they have actually seen it, they do not *know* it, even if they think or assume so. "They have to know for certain." But the Shulchan Aruch does not rule like the Maharam.

Read again afterwards

- **Tosafot** write that the **Ri** used to read the get **again after the giving**, just to make sure.
- **The Rambam** says there is no need, even lechatchila: the reading beforehand is enough.
- **The Shulchan Aruch** rules like Tosafot: it is good to read it **after the giving as well**.
- **The Rema** adds (with the text corrected by the Pitchei Teshuva) that even if they did not read it word for word afterwards, but **looked at it** and made sure it was the same get, that also suffices. "No matter what, we do read it word for word, before and after." But if there is no time, glancing through it to check the names, the places and at least the essential text is enough.

The Rema then lists the edim reading it together and signing in each other's presence: "all the questions we ask." The Rabbi noted that from the Rema it seems the *chakirot* (the formal questions) come after the giving; in his Beth Din they are done before the giving, and afterwards the get is just read again.

Seif 1 in brief: read it before; it is good to read it afterwards too; if it was only read afterwards, it is fine.

Part 3: When the Husband Had It Alone (Seif 2)

What if the get was read as it should be, and then the husband had time alone with it, put it in his pocket, and then gave it?

- The Gemara shows that **it should have been read again**, since he had it alone and could have done something with it.
- But if it was not, and he gave it, she is **divorced**, and he cannot claim he swapped it.

The Rishonim add: if the husband **has the get in his hand**, for example he gave it and later comes along with it and says "although we read it, I swapped it in between," then since he holds the get, he has *raglayim la-davar* (support for his claim) and is believed. But only **as long as she has not remarried**. Otherwise there would be "a simple way out" for an unhappy remarried woman: she gives her get back to the first husband, he says "look, I've got the get in my hand, I swapped it," and her second marriage is undone. Once she has remarried, he is not believed.

The **Pitchei Teshuva** brings another case where he would not be believed even before she remarried: if he is a **Kohen**. He could use this claim to say there was never a get and return to live with her, since otherwise as a Kohen he could not take back a divorcee.

Why the get is torn

The **Beit Shmuel** says this is why the get is torn (*keri'a*) afterwards. Since it has been marked, it is clear that this was the document used to divorce. No one can later claim that a different document was given and that the original is in his hand. The class confirmed the order: they read it, and then tear it.

Part 4: Not Read, and No Longer in Her Hands (Seif 3)

הרי שלא קרא הגט קודם נתינה, ונאבד או זרקתו

If the get is still before us, one can always read it afterwards, as in Seif 1. Here she has thrown it away, so it can no longer be checked.

Which of Tosafot's answers does the Shulchan Aruch follow? **Clearly the second**: she is a ***safek megureshet***, and the get must be done again. The **Rema** adds that because she is *safek megureshet*, ***afilu nis'et tetze***: even if she remarried, she must leave.

The Rema then brings ***yesh cholkin***, which is **Tosafot's first answer**: *lechatchila lo tinasei, ve-im nis'et lo tetze*.

Rabbeinu Yerucham: even if she still holds it

The Rema adds a further point from **Rabbeinu Yerucham**: even **if the get is still in her hand**, and she has not thrown it away, she should lechatchila not remarry with it. Yet we learned in Seif 1 that the get can be read afterwards and it is fine. The difference is timing. Reading afterwards works when it is done **immediately**, in the same context. Rabbeinu Yerucham speaks of where she comes back with the get a day or a week later and says, "we didn't read the get, but this is the get." That is too late, a kind of extended penalty.

What is the time limit? A student pointed out that we allow the husband to take the get out of sight for a moment. The Rabbi: "It's very hazy." He would say: **the same sitting, the same context**. Once everyone has gone out and come back, it is really too late.

The Rambam

The **Rambam** says she is only *safek megureshet* where the get has been **lost or thrown away**. If she still has it in her hand, then even without the edim having read it, there are the edei mesira and the signed edim on it, and the fact that she holds it is enough for her to remarry lechatchila. That is how the **Beit Yosef** reads the Rambam.

A student suggested that where the get was not read and she cannot remarry with it, the husband could simply be given it back and give it again, without writing a new get. The Rabbi recalled a sugya suggesting that a flaw in the **setting** of the giving can taint the get itself, though he could not place it, and thought one might at least need a new pair of edim.

Practical lessons

- **Always read the get before giving it.** At least the edim must read it. The minhag is that the dayanim, or at least the Rosh Beth Din, read it too.
- It is good to **read it after** as well. At the very least, if it was not read before, read it afterwards.
- **Make sure the husband has no opportunity** to be alone with the get. "This is important, by the way." If the dayanim suddenly have to step out before the giving and the get is left on the table, they should not do that; and if they must, **the get has to be read again before it is given**.

Part 5: A Blank Paper (Seif 4)

The Gemara brings **Shmuel**: if he gives her a ***niyar chalak*** (a blank paper) and says the correct words, she is divorced. How can that be, if there is no writing? The Gemara answers that Shmuel means where the get is **checked afterwards** with *mei milin* (a liquid that brings out hidden writing): if writing appears, it works; if nothing appears, it is nothing. And even when writing appears, Shmuel's "divorced" means only **safek megureshet**, since perhaps the writing was not there at the time of giving.

What does *niyar chalak* mean?

The Rabbi asked the class. A student said: completely blank. And what is Shmuel's doubt? Maybe there is ink on it that only appears later.

The Rabbi pressed: if it is **known for certain** that the get was written in invisible ink, given while nothing could be seen, and only later brought out, is it a get? The Gemara seems to say: who cares if it comes out now; at the time of giving there was no visible writing.

Opinion	Meaning of *niyar chalak*	Shmuel's doubt
Tosafot, and so Rashi implies	Not truly blank. The edim **did not have a chance to examine it properly** and were not sure whether there was writing	Whether there was writing at the time. If it were known to have been blank, or known to have only invisible writing, bringing it out later would not help
Ritva	Truly blank to the eye, with **absorbed writing** (*ksav balua*)	**Is invisible writing considered writing?** If it comes out afterwards, it was there all along: is that enough?

The student found Tosafot's reading hard to fit into the words of the Gemara, which seem to reconstruct the case only through the test. The Rabbi agreed "it's still a bit difficult," though the end of Tosafot can be read that way, and Rashi also learns like this.

The Rabbi then asked: **what about the reading?** If the writing came out afterwards, why not just read it afterwards, which we said is fine? That would be difficult for the Maharam, who requires reading beforehand.

Without any test

What if a *niyar chalak*, whatever it means, was given and **no test was done afterwards**?

- *Bepashtut* one would say there is no doubt at all.
- **Tosafot:** the test was only needed in the Gemara's initial assumption that she is definitely divorced. Now that it is concluded to be a doubt, the doubt exists **even without the test**. It is not better than a case where the get was not read before or after, but it is not worse.
- **The Rashba** rejects this: if so, the Gemara should have said so. Shmuel's doubt exists **only with the test**. Without a test, even Shmuel agrees there is nothing, and she is not divorced. The plain reading of the Gemara is more like the Rashba.

The Shulchan Aruch

נתן לה נייר חלק ואמר לה הרי זה גיטך, אם לא בדקו הנייר במי מילין לראות אם יש בו שום דבר כתוב, או אם בדקו ויצא הכתב, הרי זו ספק מגורשת

The Rabbi pointed out that the text must read ***o im*** ("or if"); some editions print only "*im*", which does not make sense. The Tur and the old editions have "*o im*". So the Shulchan Aruch includes **both cases**: either no test was done, or a test was done and the writing appeared. In both, she is a *safek megureshet*. Only if they tested it and **nothing appeared** is she not divorced. That is **like Tosafot, not the Rashba**.

What does *niyar chalak* mean for the Shulchan Aruch?

- Some follow the **Ritva**: even if it is known for certain there was no visible writing before, there is still a doubt, because the Gemara's doubt is whether absorbed writing counts.
- **The Beit Shmuel** rules that if it is known for certain there was no writing, even if writing came out afterwards, it is not a get. The Gemara's doubt is only where it was unclear before the giving whether there was writing on it.

Part 6: Thrown Into Her Courtyard (Seif 5)

זרק לה הגט לחצרה או לבין החביות, ובקשו ולא מצאו אלא מזוזה...

This is also on the same daf. He threw a get into her courtyard (her domain, so that is sorted out), and when they go to look they find **only one document, a *mezuza*** (a small parchment scroll).

- **Only one document there:** no concern. We assume the one document found is the one he threw, and it is a mezuza. What are the chances that he threw a get and a mouse took it away, leaving only a mezuza? Very unlikely. She is not divorced, and there is no concern.
- **Several documents there** (for example between the barrels): there were already documents there before, so perhaps he did throw a get and it was taken away.

Where does reading come in?

The Shulchan Aruch: if they **did not read** the get beforehand, then with only one document found there is no concern, and with several documents she is a *safek megureshet*. If they **did read** it, then whether one mezuza or several were found, she is a *safek megureshet*.

Why is reading relevant? A student suggested the doubt is whether it landed in her courtyard. The Rabbi: no, nothing in this sugya is about the courtyard. The doubt is that **perhaps he switched it**, and what he threw was the mezuza. Because they read it, we know a get existed, so the question becomes whether he threw the get or switched it for the mezuza that was found. Had it not been read at all and only one mezuza found, we would say there was nothing.

Three positions:

Opinion	Read beforehand, mezuza(s) found
Rashba	Read in advance and thrown: whether one mezuza or several, **certainly divorced**
Shulchan Aruch (Tur, Rambam)	Even having read it, and even with two or three documents there, still **safek megureshet**: "*afilu nimtze'a mezuza achat*"
Bach (brought in the Beit Shmuel)	A middle view: with one mezuza, *safek*; with **several** documents already there, she is **certainly divorced**, since it is highly unlikely that what he threw was a mezuza when there were documents there already

"Very good. That is the end of Siman 135."

Summary of the Halachot

1. **The edim must read the get before it is given** (Gittin 19b). If it was not read at all and can no longer be checked, she is a *safek megureshet* and must leave even a second husband (Tosafot's second answer, Shulchan Aruch, Rema). Some hold lechatchila she should not remarry, but if she did she need not leave.

2. **The dayanim read together with the edim** (Rema), but it is the edim's reading that matters.
3. **Read only after the giving:** she is divorced (all the Rishonim, Shulchan Aruch), against the Maharam's view that the edim's testimony was incomplete.
4. **It is good to read the get again after the giving** (the Ri, Shulchan Aruch); checking it is the same get suffices (Rema). Reading afterwards must be in the same sitting.
5. **If the husband had the get alone** after it was read, it should be read again. If not, she is divorced; he is only believed to claim a swap while holding the get and before she remarries, and a Kohen not even then.
6. **The get is torn afterwards** so no one can claim another document was used (Beit Shmuel).
7. **Never leave the get unattended** before the giving; if it was, read it again.
8. **A blank paper** (Seif 4): if not tested, or tested and writing appeared, she is *safek megureshet* (Tosafot, Shulchan Aruch, against the Rashba). If tested and nothing appeared, she is not divorced. If known for certain there was no writing, it is not a get (Beit Shmuel).
9. **A get thrown into her courtyard** (Seif 5): if it was not read and only a mezuza is found, there is no concern; if read, *safek megureshet* even with one mezuza (Shulchan Aruch). The Rashba holds she is certainly divorced; the Bach, certainly divorced where several documents were there.

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